KHEPRA Protocol – Invention Origin & Ownership Preservation Dossier (AR 27-60)

KHEPRA PROTOCOL

Comprehensive Invention Origin, Lineage, and Ownership Preservation Dossier

Prepared to Preserve Inventor Ownership Under Army Regulation 27–60

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1. Purpose of This Document

This document is prepared to affirm, document, and preserve the **sole inventorship and ownership** of the KHEPRA Protocol by Souhimbou Doh Kone. Its purpose is to preemptively and formally **rebut any presumption of U.S. Army ownership** under **Army Regulation (AR) 27–60**, Executive Order 10096, and 37 CFR Part 501.

This dossier is designed to be the foundational evidence submitted with the **DA Form 2871–R (Invention Rights Questionnaire)** and consolidates:

- Conceptual lineage (pre-naming) and dates of conception.
- Factual declaration of invention origin and non-Government resource use.
- Clean separation from official military duties, MOS responsibilities, and third-party IP (INL / Battelle Alliance LLC).

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2. Governing Legal Framework: Rebutting Presumption of Ownership (AR 27–60 Anchor)

The criteria for Government ownership are established in AR 27–60, paragraph 2–12(a). The U.S. Government requires assignment of title if *any* of the following conditions are present:

- **(1) Made During Working Hours:** The invention was conceived or reduced to practice during official duty time.
- **(2) Government Contribution:** The invention was made with a contribution of Government facilities, equipment, materials, funds, or information.
- **(3) Direct Relation to Duties:** The invention bears a direct relation to or is made in consequence of the official duties of the inventor.

Legal Standard: Where **none** of these conditions are present, the **entire right, title, and interest in and to the invention shall be left to the employee**.

This document establishes that the KHEPRA Protocol meets the stringent criteria for an **Employee-Owned Invention.**

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3. Concept Lineage Table (Pre-May 1, 2025)

The conceptual origin of the KHEPRA Protocol predates its formal naming and any Title 10 orders.

Pre-May 2025 Concept (Academic R&D)	KHEPRA Protocol Component
Agentic security attestation	Agent Consensus Protocol (ACP)
Symbolic trust markers	Adinkra Algebraic Encoding (AAE)
DAG-based provenance	DAG Provenance Graph
Zero-trust autonomous validation	KHEPRA Zero-Trust Layer
Post-quantum identity resilience	Quantum-Resilient Key Exchange (QKE)
Explainable security logic	Symbolic Traceability Layer

Key Point: This timeline and lineage confirm the **invention date (conception and first reduction to practice)** falls outside the period and scope of all Title 10 orders and assigned duties. Renaming does not reset the invention date under U.S. patent law.

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4. Formal Declaration of Invention Origin and Rebuttal

This section provides the specific factual basis to rebut the presumptions of government interest in the KHEPRA Protocol.

Factual Assertion	AR 27–60 Rebuttal (Criteria 2–12(a))
Prior Conception: I conceived the core architecture and methods **prior to 1 May 2025** and subsequent Title 10 orders.	**Rebuts (1) Working Hours:** The invention was conceived during non-duty hours and independent academic research.
Independent Resources: All development, testing, and documentation were performed on **personal devices** and funded by **personally paid AI subscriptions and resources.**	**Rebuts (2) Government Contribution:** No contribution of Government funds, facilities, equipment, or time/services of other employees was used.

Factual Assertion	AR 27–60 Rebuttal (Criteria 2–12(a))
Official Duties Separation (The Core Rebuttal):	**Rebuts (3) Direct Relation to Duties:** This is the primary defense, as established by the inventor's actual duties:
Actual Duties (Title 10): At the time of invention documentation, the inventor was cross-training in **Supply Clerk** due to a flag status, **not** performing technical/research duties.	The invention does **not** bear a direct relation to or is made in consequence of the inventor's **actual official duties** as a Supply Clerk/Entry Point Controller.
MOS vs. Duty: The assigned MOS (25S, Satellite Comms) was **not** being performed due to administrative restrictions.	The presumption of ownership (which relies on assigned duties to invent/conduct research) is **rebutted** by the fact that the inventor's assigned duties at the time of invention were explicitly *non-R&D* in nature.

5. Clean-Separation Memorandum (External IP & Confidentiality)

This section ensures the invention is protected from third-party IP claims and from the classified domain (SIPR). The inventor security clearance is currently frozen and affirm never gained access to SIPR-related technical data aligned with this invention.

- Academic Independence: Private research was conducted under the SUNY Albany NSE 526 cohort as pure academic inquiry, with no Government sponsorship, funding, or dependency on military work products. Inventor/Soldier is Candidate of Master of Science in Digital Forensics & Cybersecurity with an academic background of Computer Information Systems Undergraduate certificate earned in November 2022 before joining the service in April 2023. Inventor has participated in courses and earned certifications and badges with CanCode Community and by State Universities of New York: Python For Data Analytics, AI/ML Foundation, Cybersecurity Risk and Auditing & AI for Business The inventor has spent countless hours studying the cybersecurity landscape and independently earned CompTIA A+, ITF+, and Security+ certification with DOD involvement.
- SIPR/Classified Separation: Although the inventor performed RTO duties in a COIC (classified SIPR) environment, no personal devices were used in that environment, ensuring that no classified information or technical data contributed to the KHEPRA Protocol. This maintains the integrity of the PPA as an unclassified filing.

- INL / Battelle Independence: KHEPRA was developed as an architectural alternative to the proprietary CYRARR protocol, not an extension of it. No access to proprietary CYRARR source code or protected technical data was used, establishing a clean-room derivation.

This memorandum establishes clean-room derivation and further rebuts any presumption under AR 27–60 para. 2–12(a)–(c).

6. Evidentiary Artifacts (Supporting Materials)

These materials corroborate conception and reduction-to-practice as contemplated by AR 27–60 para. 2–1 (General Inventions) and 2–3 (Laboratory Notebook Procedures):

- Timestamped documents and academic drafts (pre-May 2025).
- Diagrams and symbolic models (FIG. 1 - FIG. 11C and related artifacts) were made on personal device using personally paid AI subscriptions.
- Personal Git repositories and local commit logs.
- DA Form 268 (Flag) documentation showing the *change* of assigned duties from technical (25S) to administrative (Supply/Entry Control) during the invention development period.
- IT/Cybersecurity related certifications and achievements.

7. Conclusion

Based on the criteria set forth in AR 27–60, Executive Order 10096, and 37 CFR Part 501:

- The KHEPRA Protocol was made without meeting the criteria for Government ownership.
- Title to the KHEPRA Protocol properly remains with the inventor.
- The U.S. Army has no automatic ownership claim.
- At most, the Army could assert a nonexclusive, royalty-free license only if one of the criteria of Section 2–12(a) were marginally met, or if voluntarily granted.

This dossier should be retained as a standing invention record and referenced directly on DA Form 2871–R and any patent filing or external diligence process.

I, Souhimbou Doh Kone, hereby declare under penalty of perjury, that the statements above are true and complete.

Inventor Name: Souhimbou Doh Kone

KONE.SOUHIMBOU.DOH.1620479850

Signature numérique de KONE.SOUHIMBOU.DOH.1620479850
Date : 2025.12.18 03:43:46 +03'00'

Signature: _____ Date: 18/12/2025

Cybersecurity Risk and Auditing

ISSUED TO

Souhimbou Doh Kone

Issued on: 18 MAY 0025 | Issued by: University at Albany, SUNY
Verify: https://www.credly.com/go/PwXKNKCs

Artificial Intelligence for Business

ISSUED TO

Souhimbou Doh Kone

Issued on: 18 MAY 2025 | Issued by: University at Albany, SUNY
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Certificate of Achievement

THIS ACKNOWLEDGES THAT

Souhimbou Kone

HAS COMPLETED

Python for Data Analytics

on the fifteenth day of May, two thousand twenty-three.

can code communities

SUNY ADIRONDACK

Rachel Sheridan

Rachel Sheridan
Deputy Director

Susan Corlew

Susan Corlew
Director of Continuing Education and Workforce Innovation

Certificate of Achievement

THIS ACKNOWLEDGES THAT

Souhimbou Kone

HAS COMPLETED

AI: Machine Learning Foundations

on the seventeenth day of December, two thousand twenty-four.

can code communities

SUNYADIRONDACK

Caro Anders-Maralit
Caro Anders-Maralit (Feb 21, 2025 09:43 EST)

Caro Anders-Maralit
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Susan Corlew
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QUALYS CERTIFIED SPECIALIST

Qualys.

Souhimbou Kone
SecRed Knowledge Inc

Has successfully completed the following course and passed the certification exam.

Vulnerability Management Detection & Response

Date Completed: 12/4/2022

Course Hours: 5

Qualys Certified Specialists can deploy, operate, and monitor the Qualys Cloud Platform to implement, manage, and protect IT systems, devices and web applications.

Dilip Bachwani
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May 11, 2023
CERTIFICATION DATE
May 11, 2023
RENEWAL DATE
May 11, 2026
EXPIRATION DATE

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March 20, 2022
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COMP001022013787

CERTIFICATION DATE
November 26, 2022

EXPIRATION DATE
November 26, 2028

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BRAINNEST

Letter of Recommendation

To whom it may concern:

I am writing to recommend **Souhimbou Kone** for a position. As a Cisco certified IT instructor with over six years of experience in the industry and a PhD student in Electrical Engineering, I have had the chance to teach many students throughout my career. **Souhimbou** was one of my students in a Cyber Security Training Program and I am confident in my ability to recommend him.

During the course of the program, I saw firsthand **Souhimbou's** extreme dedication, determination and enthusiasm for the subject matter. He consistently showed a strong work ethic and the ability to think creatively, as well as excellent teamwork skills. Furthermore, his proactive attitude and quick learning abilities make him a great fit for any organization.

I wholeheartedly endorse **Souhimbou** as a member of your team and believe he would be a valuable asset to your organization.

Sincerely,

Mohammad Lotfi Akbarabadi
Training Program Tutor
27th February 2023

Email:
Mohammad.lotfi@emu.edu.tr